

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, New Jersey 07724
2. Description of Action: This proposed action is for a firm-fixed-price Delivery Order to be issued under the National Aeronautics and Space Administration (NASA) Solutions for Enterprise-Wide Procurement (SEWP) V Government-Wide Acquisition Contract Manager (GWAC) for Brand Name Document Storage Systems, Inc. (DSS) Veterans Health Information System and Technology Architecture (VistA) Chemotherapy Manager (VCM) term software licenses with maintenance and support for all eight Veterans Integrated Service Network (VISN) 23 facilities.
3. Description of the Supplies or Services: The VA, Veterans Health Administration (VHA) VISN 23 has a requirement for the renewal of eight brand name DSS VCM term software licenses with maintenance and support. The software shall interface with the VA legacy electronic health record, VistA/Computerized Patient Record System (CPRS). The licenses are required for the following facilities within VISN 23: Minneapolis VA Health Care System, VA Nebraska-Western Iowa Health Care System (includes Omaha VA Medical Center, Lincoln, and Grand Island), Iowa City VA Health Care System, Des Moines VA Central Iowa Health Care System, Fargo VA Health Care System, Sioux Falls VA Health Care System, VA Black Hills Health Care System (includes Hot Springs and Fort Meade), and St. Cloud VA Health Care System.

VCM is a VA specific windows-based software decision support and ordering system that is fully integrated with VistA and provides seamless electronic interaction between the ordering oncologist and pharmacist. The VCM software must constantly communicate with VistA to pull up a patient's latest vitals, lab results, pharmacy orders to allow the physicians to make informed treatment decisions at any given time during the patient's treatment. The system must also be able to send data back to VistA for populating progress notes, lab information, pharmacy orders, and nursing orders in the patient's chart in the electronic health record (EHR). This integration allows the oncologist to have an extremely efficient method for preventing medication errors due to misinterpretation of hand-written orders. This software is focused on patient safety and ensures that prescription order sets are integrated and complete and that dosing is appropriate. With VCM, the clinical practice of oncology in VA becomes automated from the assignment of therapy to the calculation of chemotherapy doses and to the documentation of care. Patient safety is maximized, clinical efficiency is increased, patient information is secure, and documentation of patient care is streamlined due to existing interfaces with VistA/CPRS. VA requires brand name DSS VCM term software licenses with maintenance and support as it aligns with the existing VA VCM infrastructure, protocol, and functionality and will allow VISN 23 to maintain

operational availability. The required DSS VCM software with maintenance and support provides VHA staff with the resources necessary to provide safe and accurate care to the Veterans. The contractor-provided software maintenance ensures the software functions as intended and includes all new fixes, patches, corrections, releases, updates, versions, and upgrades to the software. Technical support consists of the contractor providing a range of services and assistance for the software via telephone, e-mail, and/or website, available Monday through Friday from 8am to 5pm Central time zone. The period of performance is June 6, 2026, through June 5, 2027. The total estimated price of the proposed action is [REDACTED].

4. Statutory Authority Cited: Pursuant to Federal Acquisition Regulation (FAR) Revolutionary Overhaul VA Deviation 16.507-7(b) the following brand name requirement is being justified and approved as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by FAR Revolutionary Overhaul VA Deviation 16.507-6(b)(2) titled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized".
5. Rationale Supporting Use of Authority Cited: Based on the market research described in Section 8 of this justification, it has been determined that limited competition is available for the brand name DSS term software licenses with maintenance and support among authorized resellers. The software licenses are required to ensure VHA VISN 23 can use chemotherapy software that interfaces with VistA and that the chemotherapy software system remains operational and has the required maintenance and support to provide software updates and patches. VISN 23 facilities are currently scheduled to transition to VA's new EHR in June 2027. Based upon previous acquisition history, any other solution would require extensive development, time for a transition, and time for implementation and training on the new system. The costs due to VistA's programming language and interfacing requirements are estimated to be approximately \$1,750,000.00. In addition, the timeline is estimated to be a minimum of 3 years to develop an enterprise-grade solution. Some of the work to transition to a new VCM solution includes specifications receiving for hardware, server approval including authority to operate with VA Office of Information Technology and VA Healthcare Technology Management approval, server setup, interface development with possible code modification for system mapping to HL7 industry standard requirements, interface testing and regression testing for baseline validity, development of drug library in replacement system, transcribing existing hematology and oncology regimen templates, testing of each transcribed template (441 templates estimated per site), importing legacy patient treatment care plans to replacement system, and pharmacy/oncology/nursing user training on replacement system. In addition to identifying programmers able to program in Massachusetts General Hospital Utility Multi-Programming Systems (MUMPS), there are data elements that are transmitted between DSS, VistA, and the analytics platform that must be developed to match the systems and transmitted between the platforms when called upon by each application. DSS VCM is unique in being able to seamlessly integrate with VistA. The VA is currently not accepting new service requests for interface

development for VistA due to the impending migration to the new VA EHR. Even if another solution could be introduced there would be major delays and gaps in treatment to Veteran patients while the interfaces are developed and templates re-built, costing the VA significant amounts of time and money to ensure those patients are treated timely and safely with minimum equivalent treatment plans. The DSS VCM software and maintenance are required for one year, at which time VISN 23 will transition to VA's new EHR.

Additionally, software maintenance and support ensure the software functions as intended and address program errors in prior software versions and provide security enhancements. Only DSS and its authorized resellers are capable of providing the necessary software maintenance and support as it requires access to the propriety source code to develop and implement software updates. Since the software is proprietary, a legal restriction is placed on access to the software code that is required to develop upgrades and patches to the software. Without this access, it is impossible for another source to modify the software code to provide the required maintenance and support. No source other than a DSS and its authorized resellers can provide the required maintenance and support described herein. In addition to the aforementioned costs, if the brand name DSS software maintenance is not procured, VISN 23 will lose access to the software and will be unable to maintain compliance with Pharmacy Benefits Management guidance of at least 90% of all chemotherapy used in the VA facilities having power plans/order sets to prescribe chemotherapy/hazardous medications. Not having the VCM software implemented across the VISN would have adverse effects on the oncology treatment plan selection, development, and utilization which puts the most critically ill Veteran patients at risk of receiving inappropriate care, inaccurate hazardous/antineoplastic medication dosing, illness, or possible death.

6. Efforts to Obtain Competition: Market research was conducted, the details of which are in Section 8 of this document. This effort did not yield any additional sources that are able to meet the Government's requirements. It was determined that limited competition is viable among authorized resellers from the required brand name DSS VCM term software with maintenance and support. In accordance with FAR Overhaul VA Deviation 16.507-7(c)(1), this justification will be provided with the solicitation to all Service-Disabled Veteran-Owned Small Business NASA SEWP V GWAC holders. Furthermore, in accordance with FAR Overhaul VA Deviation 5.301(a), the award notice for this action will be synopsized on the Contract Opportunities website.
7. Actions to Increase Competition: The Government will continue to conduct market research to ascertain whether there are changes in the marketplace that would enable future actions to be competed. Specifically, VHA will continue to monitor VA's new EHR, market trends, new/emerging products, looking for compatible and more advanced technologies to meet VA needs.
8. Market Research: The Government's subject matter experts conducted market research on similar systems in September 2025. The following 11 alternative oncology software solutions were reviewed:

- Beacon (Epic module)
- EndoSoft Product: EndoVault® Oncology EHR Software
- MediTouch
- Waiting Room Solutions
- Kareo
- Vitera
- Medios
- Eclipse
- Benchmark Systems
- eClinicalWorks
- Eon Systems

Although these similar oncology solutions have EHR compatibility, they would require significant customization, as detailed above, for compatibility within VA's current infrastructure (i.e., interfacing with VA VistA) and not work as a provided solution according to Presidential Executive Order 14271, "Ensuring Commercial, Cost-Effective Solution in Federal Contracts." Due to the propriety data and code of the brand name DSS VCM, maintenance and support cannot be administered by a third party.

The Contract Specialist (CS) conducted market research in February 2026, using the NASA SEWP V GWAC market research and provider lookup tools to determine what vendors are capable of providing the full requirement. Based on this market research, the CS identified two Service-Disabled Veteran-Owned Small Businesses that are DSS authorized resellers and able to provide all required brand name products to meet the Government's functional requirements.

9. Other Facts: None.

10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

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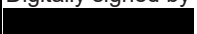
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VISN 23 –
Minneapolis VA Health Care System

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this action will be fair and reasonable because NASA SEWP V GWAC prices have previously been determined fair and reasonable. Additionally, price competition is expected among authorized resellers for this action. Additional price analysis may be performed in accordance with FAR Overhaul VA Deviation 15.404-1(b)..

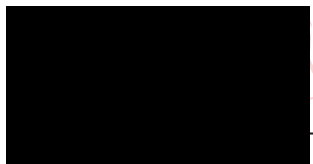
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Contracting Officer
Technology Acquisition Center

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief. This contract action exceeds the simplified acquisition threshold, but does not exceed \$900,000, therefore, the certification required by FAR Overhaul VA Deviation 16.507-6(d)(1) serves as the Contracting Officer's approval.

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Contracting Officer
Technology Acquisition Center